

IMPORTANT INFORMATION FOR THE PROPERTY OWNER

Not Part of the Lease

This page is guidance for the property owner. It is not part of the lease, is not legal advice, and has not been prepared or reviewed by an attorney. Do not give this page to the tenant as part of the signed agreement.

1. This lease does not permit “self-help” eviction

Once you deliver possession and a tenancy exists, you cannot remove a tenant yourself. You may not lock the tenant out, remove or withhold their belongings, shut off utilities, remove doors or windows, or use threats or force. California law (including Civil Code sections 789.3 and 1940.2) prohibits these acts and provides penalties. To recover possession you must use the lawful process, which normally ends in a court judgment (unlawful detainer) carried out by the sheriff.

2. Labels do not create a right to remove someone immediately

Calling a person a “guest,” a “relative,” an “unauthorized occupant,” or a “squatter” does not, by itself, let you remove that person immediately. A month-to-month agreement does not prevent someone from establishing a tenancy or other possessory right. Once a person is in lawful possession, you generally must use the applicable California termination and eviction procedures. Do not assume a quick or automatic removal.

3. The correct termination notice depends on the facts

The right notice depends on the law, the type of property, the ownership structure, the reason for ending the tenancy, whether any exemption from the Tenant Protection Act applies, and how long the tenant has lived there. Depending on the facts you may need a 30-day or 60-day notice, a legally sufficient reason (“just cause”), specific disclosures, and relocation assistance or a rent waiver for certain no-fault terminations. Do not assume the tenancy is exempt from the Tenant Protection Act; use the optional exemption addendum only after you confirm the property qualifies and get legal guidance.

4. Keep good records

Document rent payments (use the receipt template), written communications, every notice you give or receive, who is living at the property, inspections, and any lease violation with dates and details. Good records protect you if a dispute arises.

5. Do not allow informal changes

Do not accept additional occupants, informal substitutions of who lives there, or any sublease without a signed written agreement. Handle every change in writing, signed by both parties.

6. Have an attorney review before you serve any notice

Consult a California landlord-tenant attorney before serving a termination or eviction notice, and before completing the deposit, fee, and disclosure blanks. This template is a starting point, not a substitute for advice about your particular property and situation.

7. Assumptions and unresolved questions to confirm

The blanks in this template were intentionally left for the parties to complete. The following facts were not supplied and must be confirmed before the lease is signed or relied upon. These notes are for the owner and are not part of the signed lease.

- **Rent shown as \$1,000.00 per month.** This figure was provided; confirm it is correct and that any future increase follows the applicable law (for a covered unit, the annual cap is the lower of 5% plus regional CPI or 10% under Civil Code § 1947.12).
- **Landlord and Tenant identities, contact information, beginning date, rent due date, security-deposit amount, payment location, late-fee and returned-payment amounts, grace period, guest-night limits, and utility allocation** were all left blank and must be completed.
- **Security deposit.** Under current law (Civil Code § 1950.5, as amended by AB 12) the deposit generally may not exceed one month's rent. A limited exception allows up to two months for a landlord who is a natural person (or an LLC of natural persons) owning no more than two residential rental properties totaling no more than four units — but never two months where the tenant is an active-duty service member. Confirm which cap applies before filling in the amount.
- **Tenant Protection Act status is undetermined.** Whether this tenancy is covered by, or exempt from, Civil Code §§ 1946.2 and 1947.12 depends on the ownership entity, whether the unit is a separately alienable single-family home or condominium, whether the building received its certificate of occupancy within the last 15 years, how long the tenant occupies the unit (the just-cause protection attaches after 12 months), and whether a legally sufficient written exemption notice is given. *No exemption is assumed.* Use the optional exemption addendum only after confirming the property qualifies and obtaining legal guidance; if the required notice is not given, the unit is treated as covered.
- **Termination notice period.** For a month-to-month tenancy, the landlord's notice is generally 30 days, but 60 days if any tenant has lived in the unit a year or more; a covered tenancy past 12 months also requires just cause and, for a no-fault termination, relocation assistance equal to one month's rent. The correct notice is determined at the time of termination, not in this lease.
- **Local rules — City of Coachella / Riverside County.** Research indicated the property sits inside the incorporated City of Coachella and that, as of mid-2026, no local residential rent-control, rent-stabilization, or just-cause eviction ordinance, and no long-term residential rental-registration or landlord-licensing requirement, was found for the City of Coachella or for unincorporated Riverside County. (The City's licensing rules apply to short-term / vacation rentals of 30 days or less, which this lease is not.) Confirm the exact parcel and reconfirm current local ordinances before serving any notice.
- **Building age (lead-based paint).** Whether any part of the dwelling was built before 1978 was not confirmed. If it was, the federal lead-based paint disclosure and EPA pamphlet are required.
- **Flood zone, mold, pest-control contract, prior death, contamination order, military-ordnance proximity, shared meters, and smoking policy** are fact-dependent. Complete the Disclosure Worksheet for this specific property.
- **Verification limitation.** The statutory citations in this package were checked against current California law using automated research. During that research, direct access to the primary legislative website was limited, so the exact statutory wording — especially the verbatim Tenant Protection Act exemption notice, the Megan's Law notice, and any contamination acknowledgment — should be confirmed against the official primary sources (leginfo.legislature.ca.gov) before use. This template is not legal advice and has not been reviewed by an attorney.

Have a California landlord-tenant attorney review this package for your specific property and situation before you use it, complete the fee and deposit blanks, or serve any notice.